

## **Dr. Roopali Pandotra W/O Dr. Susheel ... vs State Of J&K Through Commissioner/ on 22 May, 2023**

Sr. No.5

HIGH COURT OF JAMMU & KASHMIR AND LADAKH  
AT JAMMU

CRMC No. 239/2016  
IA No. 01/2016

Reserved on: = 18.03.2023

Pronounced on: 22.05.2023

Dr. Roopali Pandotra W/o Dr. Susheel Sharma, ....Petitioner (S)  
R/o H. No. 42, Gangyal Jammu.

Through :- Sh. Rahul Pant, Sr. Advocate with  
Sh. Anirudh Sharma, Advocate.  
V/s

1. State of J&K through Commissioner/ .... Respondent(s)

Secretary to Government, District Samba Through :- | "Sh. Vishal Bharti, Py -- G con : oy . wD aed  
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1. Petitioner has invoked the inherent jurisdiction of this Court in terms of Section 561-A of Code of Criminal Procedure (now Section 482 Cr.pc) seeking quashment of complaint filed against her for commission of offences punishable u/ss 186, 187 RPC pending trial in the Court of learned Chief Judicial Magistrate (CJM) Samba as also the summoning order dated 11.02.2016 passed by Id. CJM in the aforesaid complaint on the following grounds:-

(i)that the petitioner who is a doctor by profession is posted in ESIC Hospital Industrial Area Bari Brahamna District Samba; that on 08.02.2016 when the petitioner was coming back after discharging her duties in the ESIC Hospital Bari Brahamna she was ordered to stop her car at about 4.15 pm by a young boy who was bearing a leather jacket without any name plate and was not identifiable as a police constable, it was an isolated place and petitioner was only one, who was made to stop her car; petitioner stopped her car and on asking of the said constable, handed over the relevant documents to him, however, petitioner did not come out of the car as she was too scared being all alone and no other police officer was in sight, as a matter of fact the police vehicle was stopping a little ahead and the lady Sub-Inspector was sitting in the police vehicle which was not visible because of the stationery truck intervening the site; that petitioner had asked the constable his identity, but it appears that the said constable having authority in plenty was not ready to being asked questions about his identity, as such, he lost his cool and asked the petitioner

to get out of the car to which she refused; petitioner remained seated in the car and handed over all the relevant documents to the constable for the satisfaction of the police officer, while the petitioner was waiting in the car, the lady Sub-Inspector namely Meenu Sharma approached the car and forcibly opened the front door of the car and dragged the petitioner out of the car and took the petitioner to the place where her vehicle was parked;

(ii) that the petitioner was shocked to see the aforesaid attitude of the said lady officer and felt humiliated, the police officer perhaps thought it a golden opportunity to show her authority and without any rhyme and reason started shouting at the petitioner apart from manhandling her, petitioner was made to stop there for a long period of time intentionally and deliberately with a view to harass her, she was abused and subjected to the worst possible humiliation by the said police officer, in the meantime husband of the petitioner also came on spot and all the relevant documents were given to the said police officer and both petitioner and her husband thereafter came back, however, the said police officer was conveyed that the matter will be reported to the higher authorities, thereafter, the petitioner submitted a representation on 11.02.2016 to His Excellency, the Governor J&K State as well; it is interesting to note that all the documents the said officer requested were given to her but even then she challaned the petitioner for commission of traffic offences for driving the vehicle without driving license, without wearing the seat belt, for not presenting her documents etc. etc.;

(iii) that the petitioner committed a mistake by telling the said police officer that she will complain to the higher authorities, that the aforesaid Meenu Sharma in connivance with the Incharge Police Station Bari Brahmana in order to meet \_any complaint that petitioner may file against her, cooked up the story and presented the complaint against the petitioner under section 186/187 RPC before the learned Chief Judicial Magistrate Samba and the learned Magistrate after taking the cognizance issued the summoning order dated 11.02.2016 as well.

2. Respondent No.2 in it's status report filed, has contended, that it was on 08.02.2016 SI Meenu Sharma alongwith lady HC Kamlesh Kumari No.496/S, Ct. Bansi Lai No. 421/S, Ct. Darshan No.839/S, SPO Arshad No. 84/DS\_ & Driver Rajesh No.69/DS were deputed for traffic and Naka checking on the SIDCO road where Police Station Bari Brahmana and ESIC Hospital both are located in the just adjacent to each other on factory road Bari Brahmana which is thronged by hundreds of people 24x7 on all days of the week. It is contended, that this fact should be treated as an admission that a police constable had stopped her for traffic checking and that police constable was being accompanied by four other officers and officials who were present then and there on the spot in full police uniform alongwith police vehicle; that at the time of checking, the incident happened in the evening at a time when hundreds and hundreds of people close their shifts in the factories and go back to their respective places making the incident road full of traffic and people; that the Police of Police Station Bari Brahmana keep on booking traffic violators for various errors committed by them on the road as per the directions and orders of the senior officers and on (08.02.2016, twelve (12) violators were also booked besides the petitioner for other traffic violations; that it was only after the blatant refusal of the petitioner/lady doctor to debus, cooperate and showing documents for inspection, the said lady officer deputed for government duty

intervened and softly and politely requested the said lady doctor to please come out of the car, cooperate and show the documents, on this, said lady doctor used foul and filthy language for the staff on duty and refused to show documents so the contention that the lady doctor showed the documents for inspection at the first instance is absolutely false and untrue, she was loudly yelling at the police staff and saying "you do not know me and my husband, we both are doctors, gazetted officers, policemen have no social standing, and if she is challaned, they will face consequences" and in this manner tried to deter policemen from performing their bona-fide duty side by side evading the due process of law. It is moreso contended, that it was only after the arrival of a gentleman after sometime who introduced himself as husband of the said lady doctor who produced the Registration Certificate of the car no. JKO2ZAN- 8647 being driven by his wife who was incidentally found guilty of (1) Driving without seat belt (2) did not obeyed the command of police constable on duty (3) misbehavior (4) refused to give full particulars of her (5) refused to sign on challan form and (6) refused to sign on the personal bond; that neither SI Meenu Sharma nor anyone from her staff misbehaved with the said lady doctor who was challaned for above mentioned traffic violations, the challan of which vide L-tem book number 948037 has been duly submitted in the court of law for adjudication and legal determination duly witnessed by the witnesses and the said lady doctor was duly charged U/S186/187 RPC and an "Istgasa/complaint" against her was also presented before CJM Samba on 11.02.2016 which was duly accepted by the court; that the said lady doctor has also requested to worthy Governor's office for the sanction of permission to make a complaint in the court of law to which Governor's office didn't gave permission to her file a complaint in the court of law only after verifying the whole incident and after completion of the enquiry of the matter bit by bit, the lady doctor has just aimed to avoid the legal consequences in shape of traffic challan and complaint U/S 186/187 RPC, since the genesis of all police work revolves around the principle of equality before law and equal protection of law, hence no laxity or special concession can be given to who is who of the society and contention of lady doctor hold no merit being a bundle of lies and an attempt to avoid legal procedures instituted and initiated against her.

Sh. Rahul Pant, learned senior counsel for the petitioner, while recapitulating the grounds urged in the petition, has sought the quashment of complaint filed against the petitioner under Sections 186/187 RPC in the Court of learned Chief Judicial Magistrate Samba as also the summoning order dated 11.02.2016 passed by the learned CIM by vehemently canvassing arguments, that the allegations leveled against the petitioner are totally baseless and malicious, the allegations made in the complaint even if are taken on their face value and accepted in its entirety do not prima-facie constitute any cognizable offence much less any offence against the petitioner, despite such facts, both sections 186 and 187 RPC cannot walk hand to hand, Section 186 RPC deals with the eventuality where a public servant is obstructed in the discharge of his public functions, while Section 187 RPC deals with the situation where under a person bound by law to render or furnish assistance to any public servant in execution of his public duty, intentionally omits to give such assistance. It is argued, from the ingredients of both the sections, it is clear that if somebody is accused of commission of offence under section 186 RPC then there is no question of said person being tried for commission of an offence under section 187 RPC for the same Act, the complaint, as such, has emanated out of complete non-application of mind and is liable to be set aside, it is not a case where the petitioner had skipped from the spot but it is admitted by the police officer that petitioner had stopped her car and admittedly all the documents were given to the said police

officer, but even then with a view to cover up the follies committed by the Sub-Inspector and with a view to anticipate the complaint by the petitioner against the police before the higher authorities, the present complaint was filed, and otherwise also the cognizance of the complaint has been taken by the learned CJM in violation of the provisions of Section 195 Code of Criminal Procedure, inasmuch as, in the present case it is the State which is the complainant and no complaint under section 186 or 187 RPC could be filed by the State as the same could only be filed by the public servant concerned or by some other public servant as mentioned in the above mentioned section, as such, the complaint is not maintainable and liable to be dismissed as the same is an abuse of process of law.

Sh. Vishal Bharti, learned Dy. AG has sought dismissal of the petition by strenuously articulating arguments, that petitioner/accused has committed very heinous offences punishable u/ss 186/187 RPC for the allegations, that on 08.02.2016 SI Meenu Sharma, lady HC Kamlesh Kumari No.496/S alongwith four other police officials were deputed for traffic/Naka checking on the SIDCO road where Police Station Bari Brahmana and ESIC Hospital are located, and at the time of checking, the incident happened in the evening at a time when hundreds and hundreds of people close their shifts in the factories and go back to their respective places making the incident on road full of traffic and people and the Police of Police Station Bari Brahmana keep on booking traffic violators for various errors committed by them on the road as per the directions and orders of the senior officers. It is argued, that on 08.02.2016, twelve (12) violators were also booked besides the petitioner for other traffic violations and it was only after the blatant refusal of the petitioner/lady doctor to. debus, cooperate and showing documents for inspection, the said lady officer deputed for government duty intervened and softly and politely requested to please come out of the car, cooperate and show the documents, on this, said lady doctor used foul and filthy language for the staff on duty and refused to show documents, so the contention that the lady doctor showed the documents for inspection at the first instance is absolutely false and untrue, and in this manner she has tried to deter policemen from performing their bona-fide duty side by side evading the due process of law.

I have heard Ld. Counsel for the parties, perused the material on record and gone through the relevant law on the subject matter. The inherent jurisdiction under the scheme of Section 561-A (482) Cr.PC can be exercised by High Court in a case to make such orders as may be necessary to give effect to any order under this code or to prevent abuse of process of any court or otherwise to secure the ends of justice, where there is clear abuse of process of the court and when criminal proceedings are found to have been initiated with mala-fide intention to wreck vengeance on or to cause harm to the accused or when the allegations are absurd or inherently improbable, however, the inherent jurisdiction has to be exercised sparingly.

6. Hon'ble Supreme Court of India in a case titled "State of Haryana & Ors. vs. Ch. Bhajan Lal & Ors" [1992 Suppl (1) SCC 335] while dealing with the scope and powers of High Court u/s 482 of Code of Criminal Procedure to quash the criminal proceeding for securing the ends of justice, while succinctly laying down the parameters, in paras 102 & 103 of the judgment held as under:-

102. In the backdrop of the interpretation of the various relevant provisions of the Code under Chapter XIV and of the principles of law enunciated by this Court in a

series of decisions relating to the exercise of the extraordinary power under Article 226 or the inherent powers under Section 482 of the Code which we have extracted and reproduced above, we give the following categories of cases by way of illustration wherein such power could be exercised either to prevent abuse of the process of any court or otherwise to secure the ends of justice, though it may not be possible to lay down any precise, clearly defined and sufficiently channelized and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases wherein such power should be exercised:

- (1) Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.
- (2) Where the allegations in the first information report and other materials, if any, accompanying the FIR do not disclose a cognizable offence, justifying an investigation by police officers under 156 (1) of the Code except under an order of a Magistrate within the purview of Section 155 (2) of the Code.
- (3) Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission of any offence and make out a case against the accused.
- (4) Where, the allegations in the FIR do not constitute a cognizable offence but constitute only a non-cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under Section 155 (2) of the Code.
- (5) Where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused.
- (6) Where there is an express legal bar engrafted in any of the provisions of the Code or the concerned Act (under which a criminal proceeding is instituted) to the institution and continuance of the proceedings and/or where there is a specific provision in the Code or the concerned Act, providing efficacious redress for the grievance of the aggrieved party.
- (7) Where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge.

103. We also give a note of caution to the effect that the power of quashing a criminal proceeding should be exercised very sparingly and with circumspection and that too in the rarest of rare cases; that the court will not be justified in embarking upon an enquiry as to the reliability or genuineness or otherwise of the allegations made in the FIR or the complaint and that the extraordinary or

inherent powers do not confer an arbitrary jurisdiction on the court to act according to its whim or caprice."

7. In the case of "Pepsi Foods Ltd. & Anr vs. Special Judicial Magistrate & Ors", [1998] 5 SCC 749] Hon'ble the Supreme Court while examining the extraordinary powers of High Court under Article 226 of the Constitution and also the inherent powers u/s 482 of the Code of Criminal Procedure and relying upon the ratio decidendi of Bhajan Lal's case (supra) held as under:

"22. It is settled that High Court can exercise its power of judicial review in criminal matters. In State of Haryana and others vs. Bhajan Lal and others 1992 Supp (1) SCC 335, this court examined the extraordinary power under article 226 of the Constitution and also the inherent powers under Section 482 of the Code which it said could be exercised by the High Court either to prevent abuse of the process of any court or otherwise to secure the ends of justice. While laying down certain guidelines where the court will exercise jurisdiction under these provisions, it was also stated that. these guidelines could not be inflexible or laying rigid formulae to the followed by the facts and circumstances of each case but with the sole purpose to prevent abuse of the process of any court or otherwise to secure the ends of justice. One of such guidelines is where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused. Under Article 227 the power of superintendence by the High Court is not only of administrative nature but is also of judicial nature. This article confers vast powers on the High Court to prevent the abuse of the process of law by the inferior courts and to see that the stream of administration of justice remains clean and pure, The power conferred on the High Court under Articles 226 and 227 of the constitution and under Section 482 of the Code have no limits but more the power more due care and caution is to be exercised invoking these powers."

8. In "State of Andhra Pradesh Vs. Gourishetty Mahesh & Ors", [(2010) 11 SCC 226] Hon'ble Supreme Court has held, "that though the powers possessed by the High Court under Section 482 Cr.PC are wide, however, such powers require care/caution in its exercise, the interference must be on sound principles and the inherent power should not be exercised to stifle a legitimate prosecution, it was clarified that if the allegations set out in the complaint do not constitute the offence of which cognizance has been taken by the Magistrate, it was open to the High Court to quash the same in exercise of inherent powers under Section 482 Cr.PC".

Ratios of the judgments of "Bhajan Lal", "Pepsi Food Limited" & "Gourishetty Mahesh" cases (Supra) also lay down an invariable principle of law that inherent jurisdiction can be exercised to quash criminal proceedings in a case where there is an express legal bar engrafted in any of the provisions of the Code for taking cognizance. Section 195 of Cr.PC engrafts a provision for Prosecution of Contempt of Lawful Authority of Public Servants, and mandates that no court shall take cognizance of any offence punishable under sections 172 to 188, IPC except on complaint in writing of the said public servant concerned or of some other public servant to whom he/she is

administratively subordinate. In the case in hand, for prosecution of the petitioner for commission of alleged offences u/ss 186/187 RPC against her, the complaint against the petitioner pending trial in the court of Ld. CJM Samba was mandatorily required to be filed/instituted by the said public servant concerned i.e. SI Meenu Sharma or some other public servant to whom she is administratively subordinate. Perusal of record depicts, that in terms of Annexure-C (at page 21 annexed with the petition) the complaint against the petitioner for commission of offences u/ss 186/187 RPC has been filed/instituted by the State through Police Station Bari Brahmana and not by the said public servant viz; SI Meenu Sharma or by her superior officer of Police Station Bari Brahmana under whom she was administratively subordinate at the time of incident. Mandate of section 195 Cr.PC has not been followed by the complainant while filing the complaint against the petitioner. Even the Ld. CJM Samba while taking cognizance of the matter and issuing process against petitioner for commission of alleged offences u/ss 186/187 RPC has not even followed the mandate of Section 195 of Cr.PC. The cognizance taken by Ld. CJM Samba against the petitioner vide impugned order dated 11-02-2016 therefore, suffers from manifest error. Hence, the impugned order dated 11-02-2016 alongwith the filing of complaint and all other consequential proceedings arising there from against the petitioner are abuse of the process o & of law, the same therefore, stand quashed. Interim order if any also stands vacated. Copy of this order be forthwith provided to the trial court for information and compliance.

10. Disposed off accordingly.

(Mohan Lal) Judge Srinagar:

22.05.2023 Issaq Whether the order is speaking: Yes/No Whether the order is reportable: Yes/No